

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DERRELL GREY,

Index No.

Date Index No. Purchased:

Plaintiff,

-against-

Plaintiff designates NEW YORK County as the place of trial.

THE CITY OF NEW YORK,
NEW YORK CITY POLICE OFFICERS
FERNANDO RODRIGUEZ,
and JOHN DOES 1-3,

The basis of venue is the locus of the events in the Complaint

SUMMONS

Defendants.

-----X
To the above-named Defendant(s):

Please take notice that you are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
October 17, 2020



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43 West 43rd Street, Suite 119
New York, NY 10036
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joubinlaw@gmail.com
Attorney for Derrell Grey

Defendants' address:

City of New York
c/o Corporation Counsel
100 Church Street
New York, NY 10007

Detective Fernando Rodriguez, Shield 6928
NYPD Narcotics Borough Manhattan North
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DERRELL GREY,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No.

THE CITY OF NEW YORK,
NEW YORK CITY POLICE OFFICERS
FERNANDO RODRIGUEZ,
and JOHN DOES 1-3,

Defendants.

-----X
Plaintiff Derrell Grey, by his attorney, Cyrus Joubin, complaining of the Defendants,
respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This action arises from the false arrest, malicious prosecution, denial of the right to a fair trial, and First Amendment retaliation against, Noel Moore (“Plaintiff” or “Mr. Grey”) by New York City Police Department (“NYPD”) officers in July 2019. Plaintiff brings state and federal claims against the defendant NYPD officers who violated his Constitutional rights, and against the City of New York under the doctrine of *respondeat superior*. Plaintiff seeks compensatory and punitive damages, costs, disbursements, and attorney’s fees pursuant to applicable state and federal civil rights law.

VENUE AND JURISDICTION

2. Venue is proper in New York County Supreme Court pursuant to CPLR

Section 503 because the acts complained of occurred in New York County, New York, and Plaintiff suffered damages that exceed the jurisdictional amount of all lower courts of the State of New York.

3. Plaintiff has complied with N.Y. General Municipal Law Section 50-E by serving a notice of claim upon the defendants. More than 30 days have elapsed since said claim (2019PI028401) was presented and the claim has not been satisfied. This action has been commenced within one year and ninety days after the occurrence of the event upon which the claims are based.

JURY DEMAND

4. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

5. At all times relevant herein, Plaintiff was a resident of the State of New York.

6. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York.

7. Defendant City of New York is authorized by law to maintain the NYPD, is ultimately responsible for the NYPD, and assumes the risks incidental to the maintenance of it and its employees.

8. At all times relevant herein, Defendant Police Officers¹ Fernando Rodriguez and John Does 1-3 were acting as duly appointed and acting NYPD officers, servants, employees, and agents of Defendant City; for, on behalf of, and with the power and authority vested in them by Defendant City; and they were otherwise performing and

¹ At the time of the incident, Fernando Rodriguez had the title of Police Officer and Shield Number 27943. Since the incident, he has been promoted to the position of Detective and has a new shield number: 6928. In order to accurately refer to him at the time of the incident at the center of this lawsuit, the Statement of Facts in this complaint will refer to him as "Police Officer Rodriguez."

engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

STATEMENT OF FACTS

9. On July 20, 2019, at around 6:30 p.m., Plaintiff was outside in his neighborhood in Harlem when he noticed NYPD officers inhumanely treating an arrested man on the ground.

10. Plaintiff verbally criticized the officers' behavior, but in no way interfered with or obstructed the officers in performing their duties.

11. Because Plaintiff continued to criticize the officers, the officers, including defendant Police Officer Fernando Rodriguez, became agitated.

12. Because of their agitation and frustration over Plaintiff's verbal critiques, about four officers on the scene, including Police Officer Rodriguez, arrested Plaintiff, handcuffing him behind his back.

13. Under arrest, Plaintiff was first taken to the NYPD 23rd Precinct, then to the 25th Precinct.

14. After about six hours in custody, Plaintiff was released with a Desk Appearance Ticket ("DAT"), which ordered him to appear in New York County Criminal Court.

15. In connection with Plaintiff's arrest and DAT, defendant Police Officer Rodriguez submitted false and fabricated allegations to the New York County District Attorney's Office in support of Plaintiff's criminal prosecution.

16. Specifically, Officer Rodriguez falsely and maliciously informed the New York County District Attorney's Office that, *inter alia*, he observed Plaintiff obstructing

traffic while screaming and cursing at officers in a manner that caused a crowd of ten to twenty pedestrians to gather and that caused a car to stop in the middle of the street.

17. Based on these fabricated allegations, the New York County District Attorney's Office prosecuted Plaintiff in New York County Criminal Court on Docket Number CR-025530-19NY, charging him with four counts of disorderly conduct.

18. Plaintiff appeared three times in Criminal Court at 100 Centre Street in lower Manhattan in connection with this prosecution, under threat of having an arrest warrant issued if he did not show up to court.

19. On December 6, 2019, all charges against Plaintiff were dismissed and sealed.

20. As a direct and proximate cause of the said acts of the Defendants, Plaintiff suffered the following injuries and damages in a sum exceeding the jurisdiction of all lower courts:

- a. Violation of his constitutional rights under the First, Fourth, Fifth, and Fourteenth Amendments to the United States Constitution;
- b. Violation of his constitutional rights under the New York State Constitution;
- c. Loss of liberty;
- d. Emotional distress, degradation, and suffering.

CAUSES OF ACTION

FIRST CLAIM

False Arrest Pursuant to 42 U.S.C. Section 1983 Against the Individual Defendants

21. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

22. By the actions described, the individual defendants deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to be free from false arrest.

23. As detailed above, the individual defendants intentionally arrested and detained Plaintiff without probable cause, without a warrant, and without privilege or consent.

24. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

SECOND CLAIM

Malicious Prosecution Pursuant to 42 U.S.C. Section 1983 Against the Individual Defendants

25. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

26. By the actions described, the individual defendants deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to free from malicious prosecution.

27. As detailed above, the individual defendants intentionally stopped and detained Plaintiff without reasonable suspicion, and without privilege and consent.

28. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

THIRD CLAIM

Denial of the Right to a Fair Trial Pursuant to 42 U.S.C. Section 1983 Against the Individual Defendants

29. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

30. By the actions described, the Defendants deprived Plaintiff of his Fourth, Fifth, and Fourteenth Amendment rights to a fair trial.

31. The individual defendants deliberately forwarded fabricated information to the Manhattan District Attorney's Office.

32. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

FOURTH CLAIM

Failure to Intervene Pursuant to 42 U.S.C. Section 1983 Against the Individual Defendants

33. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

34. Each and every individual defendant had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights by other law enforcement officers.

35. The individual defendants failed to intervene on Plaintiff's behalf to prevent, end, or truthfully report the violations of his constitutional rights despite knowing about such violations and having had a realistic opportunity to do so.

36. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

FIFTH CLAIM

First Amendment Retaliation Under 42 U.S.C. Section 1983 Against the Individual Defendants

37. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

38. By the actions described, the individual defendants arrested Plaintiff because he lawfully exercised his First Amendment right to criticize police officers in a public place. In doing so, the individual defendants chilled Plaintiff's First Amendment rights.

39. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

SIXTH CLAIM
Malicious Prosecution Under N.Y. State Law

40. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

41. As detailed above, the individual defendants intentionally and with actual malice initiated a felony prosecution against Plaintiff without probable cause. The prosecution terminated in Plaintiff's favor when all charges against him were dismissed.

42. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

SEVENTH CLAIM
**Negligent Hiring/Training/Retention of Employment Services Under N.Y. State Law
Against Defendant City of New York**

43. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

44. Defendant City owed a duty of care to Plaintiff to prevent the Constitutional violations sustained by Plaintiff.

45. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions. Defendant City knew or should have known through the

exercise of reasonable diligence that the individual defendants could potentially cause harm.

46. Defendant City's negligence in hiring, screening, training, disciplining and retaining the individual defendants proximately caused Plaintiff's injuries.

47. As a result of its negligent conduct, Defendant City has directly and proximately caused the damages and injuries hereinbefore alleged.

EIGHTH CLAIM
Respondeat Superior
Against Defendant City of New York

48. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

49. Defendant City of New York employed all of the individual defendants at the time of the incident.

50. At the time of the incident, all of the individual defendants were acting in the scope of their employment with the City of New York.

51. During the commission of the incident in question, all of the individual defendant were working in furtherance of their employment with the City of New York.

52. Under the doctrine of *respondeat superior*, the City of New York is responsible for the wrongdoing of its employees acting within the scope of their employment.

53. The plaintiff is entitled to compensatory damages from the City of New York in an amount to be determined at trial, together with attorneys' fees and costs.

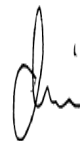
54. As a direct and proximate result of the acts of the New York City employees detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief against the Defendants:

- a. An order awarding compensatory damages for Plaintiff Noel Moore in an amount to be determined at trial;
- b. An order awarding punitive damages in an amount to be determined at trial;
- c. A court order, pursuant to 42 U.S.C. Section 1988, that Plaintiff is entitled to reasonable attorney's fees, costs, and disbursements;
- d. Such other and further relief as this Court deems appropriate.

DATED: New York, New York
October 17, 2020



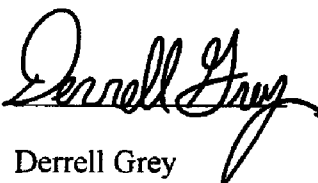
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joubinlaw@gmail.com
Attorney for Derrell Grey

PLAINTIFF VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

I, Derrell Grey, being duly sworn, depose and say: I am the Plaintiff in the within action, I have read the foregoing Complaint and know the contents thereof; and the same is true to my knowledge.

Dated: New York, NY
October 17, 2020


Derrell Grey

Sworn to before me this
17 Day of October 2020



Notary Public

CYRUS JOUBIN
NOTARY PUBLIC-STATE OF NEW YORK
No. 02JO6264189
Qualified in Kings County
My Commission Expires 6-25-2024